IN THE CIRCUIT COURT OF THE FIFTH JUDICIAL CIRCUIT
IN AND FOR MARION COUNTY, FLORIDA

PATRICIA STROBO and
JOE STROBO,

Plaintiffs,

CASE NO.: 2021-CA-002211

v.

WILLIAM RICHESON and
BLAC INVESTMENTS, INC.,

Defendants.
_____/

ANSWER, AFFIRMATIVE DEFENSES, AND DEMAND FOR JURY TRIAL

Defendants BLAC INVESTMENTS, INC. and WILLIAM RICHESON answer Plaintiffs' Complaint (filed 12/15/21) as follows:

Allegations Common to All Counts

1. Admitted for jurisdictional purposes; otherwise, denied.

2. Without knowledge; therefore, denied.

3. Without knowledge; therefore, denied.

4. Admitted for jurisdictional purposes; otherwise, denied.

5. Admitted for jurisdictional purposes; otherwise, denied.

6. Admitted.

7. Admitted.

8. Denied.

9. Admitted for venue purposes; otherwise, denied.

Count I – Ms. Strobo's Auto Negligence Claim Against Defendant Driver

10. Mr. Richeson realleges his responses to Paragraphs 1 through 9.

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11. Denied as framed. Mr. Richeson's duty is as set forth by Florida law.

12. Denied, including subparts (a) through (d).

13. Denied.

Count II – Mr. Strobo's Loss of Consortium Claim Against Defendant Driver

14. Mr. Richeson realleges his responses to Paragraphs 1 through 9 and 11 through 13.

15. Without knowledge; therefore, denied.

16. Without knowledge; therefore, denied.

17. Without knowledge; therefore, denied.

18. Denied.

Count III – Ms. Strobo's Vicarious Liability Claim Under Respondeat Superior Against Defendant Employer

19. Blac realleges its responses to Paragraphs 1 through 9, 11 and 12.

20. Denied.

21. Denied.

Count IV – Mr. Strobo's Loss of Consortium Claim Against Defendant Employer

22. Blac realleges its responses to Paragraphs 1 through 9, 11 through 13, 15 through 17, and 20 through 21.

23. Denied.

AFFIRMATIVE DEFENSES

FIRST AFFIRMATIVE DEFENSE

Defendants deny that Plaintiffs are entitled to maintain this action since Plaintiffs cannot meet the requisite threshold requirements as Plaintiff did not incur any of the following: significant permanent losses/important bodily function, permanent injury within a reasonable degree of medical probability, significant and permanent scarring or disfigurement, or death. Defendants

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are exempted from tort liability for damages because of bodily injury to Plaintiffs unless Plaintiffs are entitled to maintain an action under the provisions of Section 627.737(2) of the Florida Statutes.

SECOND AFFIRMATIVE DEFENSE

Defendants state that at all times material to this action, Plaintiff Ms. Strobo so negligently and carelessly operated her motor vehicle causing it to collide with the motor vehicle allegedly operated by Mr. Richeson, and such negligence was the sole legal cause of Plaintiff's injuries, if any, or in the alternative was the contributing factor to the accident and to Plaintiffs' alleged injuries.

THIRD AFFIRMATIVE DEFENSE

Defendants affirmatively allege that Plaintiff failed to use available and operational seat belts and/or occupant restraint devices, and such failure was unreasonable under the circumstances of the accident and contributed to producing at least a portion of her alleged damages. Accordingly, Plaintiff's damages, if any should be barred or comparatively diminished in accordance with the percentage of such alleged damages caused by Plaintiff's non-use of the seat belts and/or occupant restraint devices.

FOURTH AFFIRMATIVE DEFENSE

Defendants affirmatively allege that at all times material hereto, there was available and remains available to Plaintiffs certain collateral source benefits, and, to the extent that such benefits are available, Defendants are entitled to a setoff of damages claimed by Plaintiffs.

FIFTH AFFIRMATIVE DEFENSE

Defendants affirmatively allege that on the date of the accident alleged in the Complaint, there was in full force and effect Florida Statute § 768.76, allowing Defendants under certain circumstances specified in the statute to introduce evidence of payments to Plaintiff or on her

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behalf certain collateral sources in mitigation of, reduction of, or setoff of damages claimed by Plaintiff in this action.

SIXTH AFFIRMATIVE DEFENSE

Defendants affirmatively allege that Plaintiff's alleged damages were caused by the fault of other parties and as a result, Defendants should be liable, if at all, only for their proportionate share of liability pursuant to Florida Statute § 768.81(3); *Fabre v. Marin*, 623 So. 2d 1182 (Fla. 1993); and *Mesmer v. Teacher's Ins. Co.*, 588 So. 2d 610 (Fla. 5th DCA 1991). Pursuant to the aforementioned case law, Defendants will specifically identify said parties.

SEVENTH AFFIRMATIVE DEFENSE

Defendants affirmatively allege that Plaintiffs failed to mitigate their damages. Plaintiff did not avail herself of medical treatment where such medical treatment is reasonably expected to diminish her disability, discomfort and damage. Plaintiff further failed to mitigate her damages by failing to resume gainful employment at a time when Plaintiff was physically able to do so but did not following the accident. *Miller v. Lovett,* 879 F.2d 1066 (2nd Cir. 1989). To the extent Plaintiff failed or fails to comply with the mandate of the Patient Protection and Affordable Care Act to obtain health insurance, Plaintiff has also failed to mitigate her damages, and Plaintiff's recovery, if any, must be reduced by the amount attributable to such failure. Moreover, Plaintiff has failed to mitigate damages to the extent her medical bills are not reasonable and/or necessary; the billing is excessive; and/or the medical providers have engaged in conduct (excessive billing or treatment) which was not reasonably foreseeable.

EIGHTH AFFIRMATIVE DEFENSE

Defendants affirmatively allege that they are entitled to a setoff for benefits paid to or on behalf of Plaintiffs pursuant to Florida Statute § 627.736 (PIP). To the extent Plaintiff's medical,

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hospital and related bills, lost wages, and loss of earning capacity, if any, were paid in whole or in part by personal injury protection benefits, medical payments coverage, or other collateral sources, Plaintiffs are barred from recovering the same herein, and damages should be set off to the extent that collateral sources have paid those damages or those damages have been incurred and are owed and payable.

NINTH AFFIRMATIVE DEFENSE

Defendants affirmatively state that if Plaintiff had health insurance coverage at or after the time of the incidents alleged in her Complaint, and to the extent any of Plaintiff's health care providers maintained contracts with Plaintiff's health insurance carrier, Plaintiff's providers must submit all bills to Plaintiff's health insurer, and Plaintiff's providers must accept the contract amount in full payment of all charges for treatment pursuant to Florida Statute § 641.3154. If any such provider has failed to properly submit bills in violation of the contractual provisions, such that Plaintiff does not owe those monies, then those damages do not exist; and, therefore, cannot be recovered against any of the Defendants sued in this action. Further, Defendants are entitled to any and all health insurance contractual rate agreements and/or adjustments for the purpose of calculating any alleged damages.

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DEMAND FOR JURY TRIAL

Defendants BLAC INVESTMENTS, INC. and WILLIAM RICHESON hereby demand a trial by jury on all issues so triable.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 21st day of February, 2022, I electronically filed the foregoing with the Clerk of the Courts by using the ePortal System pursuant to Florida Rule of Judicial Administration 2.516(a), which ePortal will provide service upon: **William T. Allen,**

Esquire, Steven M. Brady, Esquire, and **David Carlson, Esquire** of Allen Law Firm, P.A., 2550 S.W. 76th Street, Suite 150, Gainesville, Florida 32608, at e-service: service@allenlaw.com and kimberly@allenlaw.com *(Counsel for Plaintiffs)*.

HILL, RUGH, KELLER & MAIN, P.L.

s/Rachel A. O'Brien

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